



36. The personal grievance provisions of the ERA are intended to _____.	36. ERA 的个人申诉条款旨在_____。
[A] punish dubious corporate practices	[A] 惩处企业的可疑行为
[B] improve traditional hiring procedures	[B] 完善传统的招聘流程
[C] exempt employers from certain duties	[C] 免除雇主的特定责任
[D] protect the rights of ordinary workers	[D] 保护普通员工的权利

锁定答案	D	1.定位:结合题干关键词 personal grievance provisions 与 are intended to 可定位至第二段①句(Personal grievance procedures were designed to...). 2.分析:第二段①句指出,ERA 的个人申诉程序旨在保护普通员工的工作岗位,避免员工被“不正当解雇”,意即:保障普通员工“免遭不正当解雇”的权利。 3.确定:题干+D 项契合第二段①句文意:are intended to protect the rights of ordinary workers 同义改写 were designed to guard the jobs of ordinary workers from “unjustified dismissals”。
排除干扰	A	1.定位:由选项关键词 corporate practices 可定位至第二段②句(conduct by management)。 2.排除:A 项错将条款的惩罚对象由“随意的解雇行为”扩大为“一切可疑的企业行为”;此外,惩罚只是个人申诉条款达到“保护普通员工的工作岗位”这一目的的途径,而非目的本身。
	B	1.定位:由选项关键词 procedures 可定位至第一段③句(procedurally)以及第二段①句(procedures)。 2.排除:第一段③句的 procedurally 与第二段①句的 procedures 分别指“解雇流程”“个人申诉的流程”,B 项论及的“招聘流程”这一细节与原文不符;其主体内容“完善流程”也并非条款目的所在,与题干所问不符。
	C	1.定位:由选项关键词 employers 可定位至第一段(an employer/Employers)。 2.排除:C 项“免除雇主的特定责任”与第一段中条款的具体规定“雇主必须给出解雇理由,并通过公正的程序解雇员工”的言外之意“雇主必须承担更多的责任”相悖。
技巧总结		目的细节题的基本解题思路为:根据表达目的的标记词(aim at、intend to、with the purpose of、so as to、in order to 等)锁定目的相关内容,然后选取对其进行改写或概括的选项。第二段①句以 were designed to 引出“ERA 的个人申诉条款”的目的:guard the jobs of ordinary workers from “unjustified dismissals”。由此可知,个人申诉条款的目的在于“保护”,保护群体为“普通员工”,保护内容为“避免被不正当解雇的权益”,D 项同时包含三个方面的内容,故锁定为正确项。

III ① But these provisions create difficulties for businesses when applied to highly paid managers and executives. ② As countless boards and business owners will attest, constraining firms from firing poorly performing, high-earning managers is a handbrake on boosting productivity and overall performance. ③ The difference between C-grade and A-grade managers may very well be the difference between business success or failure. ④ Between preserving the jobs of ordinary workers or losing them. ⑤ Yet mediocrity is no longer enough to justify a dismissal.

但这些条款如果应用于高薪的经理和高管,就会给企业带来不少难题。正如无数董事会和企业主会证实的一样,限制企业解雇表现不佳的高薪经理会阻碍企业的生产效率以及整体业绩的提高。经理是一流还是三流,很可能决定了企业是成功还是失败,普通员工是保住工作还是下岗。然而现在,“工作能力平平”已不足以构成解雇员工的正当理由。